

DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS FOR MARTIN COURT

STATE OF TEXAS

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COUNTY OF HARRIS

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This DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS FOR MARTIN COURT (this "Declaration") is made by 604 Martin LLC, a Texas limited liability company ("Declarant").

RECITALS

Declarant is the sole owner of that certain real property, being all of MARTIN COURT, a residential subdivision recorded under County Clerk's Film Code 693705 of the Map Records of the Official Public Records of Harris County, Texas (the "Subdivision").

Declarant imposes on all of the real property now or later constituting any portion, phase, or section, including all sixteen (16) lots and four (4) reserves, of the Subdivision, (the "Property") certain protective covenants, conditions, and restrictions, as described below, according to an established general plan for the improvement and development of the Subdivision.

The Subdivision is subject to the Common Area Utility and Drainage, and Maintenance Access Easements and Restrictions recorded under County Clerk's File No. RP-2021-105580 of the Real Property Records of the Official Public Records of Harris County, Texas (the "REAs"), which REAs are hereby superseded entirely by this Declaration as of the Effective Date of this Declaration.

All of the Property will be held, sold, conveyed, and occupied subject to the following easements, restrictions, covenants, and conditions, which are for the purpose of protecting the value and desirability of, and which will run with the Property and will be binding on all parties having any right, title, or interest in or to the Property or any part of it, their heirs, successors, and assigns, and will inure to the benefit of each owner.

Each contract or deed that may be executed with regard to the Property or any portion of it will conclusively be held to have been executed, delivered, and accepted subject to the following covenants, conditions, and restrictions, regardless of whether they are set forth or referred to in the contract or deed.

ARTICLE 1 DEFINITIONS

Unless the context specifies or requires otherwise, the following terms when used in this Declaration have the following meanings:

- 1.01. **"Assessment"** or **"Assessments"**: the assessment(s) levied by the Association under the terms and provisions of this Declaration.
- 1.02. **"Association"**: Martin Court Property Owners' Association Inc., a Texas nonprofit corporation.
- 1.03. **"Association Rules"**: the rules and regulations adopted by the Board, as amended from time to time.
- 1.04. **"Board"**: the Board of Directors of the Association.
- 1.05. **"Bylaws"**: the Bylaws of the Association, which may be adopted by the Board, as amended from time to time.
- 1.06. **"Certificate of Formation"**: the Certificate of Formation of the Association that may be filed in the office of the Secretary of State of the State of Texas, as amended from time to time.
- 1.07. **"City"** means Houston, Texas.
- 1.08. **"Common Areas"**: any Lots and other properties designated by Declarant and conveyed to the Association, along with the facilities and any exclusive easements and other areas granted to Declarant or the Association and maintained for the common benefit of the Owners. Common Areas may be designated by Declarant and dedicated or otherwise conveyed to the Association, the Owners, or to any public agency, authority, or utility from time to time and at any time.
- 1.09. **"Improvement"**: every structure and all appurtenances to structures of every type and kind, including but not limited to buildings, outbuildings, storage sheds, patios, tennis courts, swimming pools, garages, storage buildings, fences, screening walls, retaining walls, stairs, decks, landscaping, poles, signs, exterior air conditioning, water-softener fixtures or equipment, and poles, pumps, wells, tanks, reservoirs, pipes, lines, meters, antennas, towers, and other facilities used in connection with water, sewer, gas, electric, telephone, regular or cable television, or other utilities.
- 1.10. **"Living Unit"**: a single-family residence.
- 1.11. **"Lot"** or **"Lots"**: any parcel or parcels of land within the Property shown as a subdivided lot on any Plat of the Subdivision, together with all Improvements located on the parcel or parcels.
- 1.12. **"Member"** or **"Members"**: any Person(s) holding membership rights in the Association.
- 1.13. **"Mortgage"** or **"Mortgages"**: any mortgage(s) or deed(s) of trust covering any portion of the Property given to secure the payment of a debt.

- 1.14. “Mortgagee” or “Mortgagees”: the holder or holders of any Mortgage or Mortgages.
- 1.15. “Owner” or “Owners”: the Person(s), including Declarant, holding a fee-simple interest in any portion of the Property, but does not include the Mortgagee of a Mortgage.
- 1.16. “Person” or “Persons”: any individual(s), entity, or entities having the legal right to hold title to real property.
- 1.17. “Plat” or “Plats”: the subdivision plat of the Subdivision, as amended from time to time.
- 1.18. “Restrictions” this Declaration, as amended from time to time, together with the Association Rules, the Certificate of Formation, and the Bylaws.

ARTICLE 2 GENERAL RESTRICTIONS

All of the Property will be owned, held, encumbered, leased, used, occupied, and enjoyed subject to the following limitations and restrictions:

- 2.01. Subdividing. No Lot will be further divided or subdivided, nor may any easements on or other interests relating to a Lot less than the whole be conveyed by the Owner of the Lot without the prior written approval of the Association; however, when Declarant is the Owner, Declarant may further divide and subdivide any Lot and convey any easements or other interests less than the whole, all without the approval of the Association.
- 2.02. Hazardous Activities. No activities will be conducted on the Property and no Improvements constructed on the Property that are or might be unsafe or hazardous to any Person or property. Without limiting the generality of the foregoing, no firearms or fireworks will be discharged on the Property, and no open fires will be permitted except within safe and well-designed interior fireplaces or in contained barbecue units while attended and in use for cooking purposes. This paragraph 2.02 will not apply to construction activities by Declarant.
- 2.03. Insurance Rates. Nothing will be done or kept on the Property that would increase the rate of insurance or cause the cancellation of insurance on any Lot or any of the Improvements located on any Lot.
- 2.04. Noise and Nuisances. No exterior speakers, horns, whistles, bells, or other sound devices (other than security devices used exclusively for security purposes) will be located, used, or placed on any of the Property. No noise or other nuisance will be permitted to exist or operate on any portion of the Property so as to be offensive or detrimental to any other portion of the Property or to its occupants. No exterior lighting of any sort will be installed or maintained on a Lot where the light source is offensive or a nuisance to neighboring property (except reasonable security or landscape lighting that has the approval of the Association). This Paragraph 2.04 will not apply to construction activities by Declarant.
- 2.05. Animals; Household Pets. No animals, including pigs, hogs, swine, poultry, fowl, wild animals, horses, cattle, sheep, goats, or any other type of animal not considered to be a domestic household pet within the ordinary meaning and interpretation of these words may be kept,

maintained, or cared for on the Property. Any dog that has been determined to be "dangerous" by the City or any other political subdivision, animal-control authority, or governmental agency, will never be maintained, kept, or cared for on the Property. No animal will be allowed to make an unreasonable amount of noise, or to become a nuisance, and no domestic pets will be allowed on the Property other than on the Lot of its Owner unless confined to a leash. No animal may be stabled, maintained, kept, cared for, or boarded for hire or remuneration on the Property, and no kennels or breeding operation will be allowed. No animal will be allowed to run at large, and all animals must be kept within enclosed areas that must be clean, sanitary, and reasonably free of refuse, insects, and waste at all times. An enclosed area must be constructed in accordance with plans approved by the Association, must be of reasonable design and construction to adequately contain animals in accordance with the provisions of this Declaration, and must be screened so as not to be visible from any other portion of the Property.

2.06. Rubbish and Debris. No rubbish or debris of any kind will be placed or permitted to accumulate on the Property, and no odors will be permitted to arise from it so as to make the Property or any portion of it unsanitary, unsightly, offensive, or detrimental to any other property or to its occupants. Refuse, garbage, and trash must be kept at all times in covered containers, and the containers must be kept within enclosed structures or appropriately screened from view. Each Owner must contract with an independent disposal service to collect all garbage or other wastes if collection service is not provided by the Association or a governmental entity. This Paragraph 2.06 will not apply to construction activities by Declarant.

2.07. Maintenance; Mowing. Each Owner must keep all shrubs, trees, grass, and plantings of every kind on the Owner's Lot, if any, cultivated, pruned, free of trash, and other unsightly material. All Improvements owned by the Owner of on any Lot must at all times be kept in good condition and repair and adequately painted or otherwise maintained by the Owner of the Lot. Declarant and the Association may at any reasonable time enter on any Lot to replace, maintain, and cultivate shrubs, trees, grass, or other plantings as deemed necessary, to paint, repair, or otherwise maintain any Improvements in need of maintenance. The full cost of all the work set forth in the immediately preceding sentence will be a special Assessment against the Owner's Lot, secured by a lien against the Owner's Lot and collectable in the same manner as provided for in Article 6, including but not limited to foreclosure of the lien. This Paragraph 2.07 will not apply to construction activities by Declarant.

2.08. Water and Other Tanks. The Association has the right to approve the location of any tank used or proposed in connection with a single-family residential structure, including tanks for the storage of fuel, water, or oil, and including swimming-pool filter tanks. No elevated tanks of any kind will be erected, placed, or permitted on any Lot. All tanks must be screened so as not to be visible from any other part of the Property. No individual water-supply systems will be permitted on any Lot, including but not limited to water wells, cesspools, or water-collection tanks; however, rain barrels and rain harvesting devices will be permitted subject to the right of the Association to approve the location, size, type, and shielding of, and the materials used in the construction of, any such rain barrels, rain harvesting devices, and related appurtenances.

2.09. Temporary Structures. No tent, shack, or other temporary building, improvement, or structure will be placed on the Property without the prior written approval of the Association. This Paragraph 2.09 will not apply to construction activities by Declarant.

2.10. Unsightly Articles; Vehicles. No article deemed to be unsightly by the Association will be permitted to remain on any Lot so as to be visible from an adjoining property or from public or private thoroughfares. Without limiting the generality of the foregoing, trailers, graders, trucks other than pickups, boats, tractors, campers, wagons, buses, motorcycles, all-terrain vehicles, motor scooters, sports equipment (such as volleyball nets, soccer goals or basketball goals), and garden-maintenance equipment must be kept at all times, except when in use, in enclosed structures or screened from view, and no repair or maintenance work may be done on any of the foregoing or on any automobile (other than minor emergency repairs) except in enclosed garages or other structures. Each single-family residential structure constructed within the Property must have sufficient garage space to house all vehicles to be kept on the Lot. Owners or any guest or invitee of an Owner will not park on the Shared Driveway or the Common Areas within the Property at any time. Service areas, storage areas, compost piles, and facilities for hanging, drying, or airing clothing or household fabrics must be appropriately screened from view, and no lumber, grass, plant waste, shrub or tree clippings, metals, bulk materials, scrap, refuse, or trash will be kept, stored, or allowed to accumulate on any portion of the Property unless it is within an enclosed structure or is appropriately screened from view. This Paragraph 2.10 will not apply to construction activities by Declarant.

2.11. Mobile Homes, Travel Trailers, and Recreational Vehicles. No mobile homes may be parked or placed on any Lot or used as a residence, either temporary or permanent, at any time, and no motor homes, travel trailers, or recreational vehicles may be parked on or near any Lot so as to be visible from adjoining property or from public or private thoroughfares at any time.

2.12. Compliance with the Restrictions. Each Owner must comply strictly with the provisions of the Restrictions as amended from time to time. Failure to comply with any of the Restrictions constitutes a violation of this Declaration and gives rise to a cause of action to recover amounts due for damages or injunctive relief or both, maintainable by the Declarant, the Board on behalf of the Association, an aggrieved Owner, the City, or, if applicable, any Municipal Utility District having jurisdiction over the Property.

2.13. Liability of Owners for Damages. No Owner will in any way alter, modify, add to, or otherwise perform any work on the Common Areas without the prior written approval of the Association. Each Owner will indemnify and hold Declarant, the Association, the Owners, or any public agency, authority, or utility if the Common Areas have been dedicated or otherwise conveyed to any of these parties (collectively, the "Indemnified Parties") harmless, from and against any and all claims, damages, suits, judgements, court costs, attorney's fees, attachments, and other legal actions arising out of or relating to the negligence or intentional acts of Owner, Owner's tenants, or their respective guests or invitees regarding (a) the Common Areas or (b) any Improvements constructed on any Lot, the maintenance of which has been assumed by any of the Indemnified Parties. The full cost of all repairs of the damages set forth in the immediately preceding sentence will be a special Assessment against the Owner's Lot, secured by a lien against the Owner's Lot and collectable in the same manner as provided for in Article 6, including but not limited to foreclosure of the lien.

2.14. Basketball Goals – Permanent and Portable. Permanent and portable basketball goals are prohibited from use in any Common Areas.

2.15. Right of Entry and Enforcement. The Association may enter at any time in an emergency, or in a nonemergency after twenty-four (24) hours' written notice, without being liable to any Owner, on any Lot and into any Improvement on a Lot, for the purpose of enforcing the Restrictions or for the purpose of maintaining or repairing any area, Improvement, or other facility to conform to the Restrictions, and, except as expressly provided otherwise in this Declaration, the expense incurred by the Association in connection with the entry on any Lot and the maintenance and repair work conducted on it will be a personal obligation of the Owner of the Lot entered on, will be a lien on the Lot entered on and the Improvements on the Lot, and will be enforced in the same manner and to the same extent as provided in Article 8 for regular Assessments.

2.16. No Warranty of Enforceability. Declarant makes no warranty or representation as to the present or future validity or enforceability of any restrictive covenants, terms, or provisions. Any Owner acquiring a Lot in reliance on one or more of the restrictive covenants, terms, or provisions assumes all risks of their validity and enforceability and, by acquiring the Lot, agrees to hold Declarant harmless if they are held to be invalid or unenforceable.

2.17. Actions to Enforce Restrictions. The Association will have the power and authority from time to time, in its own name and on its own behalf, or in the name of and on behalf of any Owner who consents to it, to commence and maintain actions and suits to enforce, by mandatory injunction or otherwise, or to restrain and enjoin, any breach or threatened breach of the Restrictions. The Association is also authorized to settle claims, enforce liens, and take all action as it may deem necessary or expedient to enforce the Restrictions; however, the Board will never be authorized to expend any Association funds for the purpose of bringing suit against Declarant, or any of Declarant's respective successors and assigns.

ARTICLE 3 USE AND CONSTRUCTION RESTRICTIONS

3.01. Approval for Construction. No Improvements will be constructed on any Lot without the prior written approval of the Association.

3.02. Use. All Lots, unless dedicated to the Association as Common Areas, will be improved and used solely for single-family residential use, fencing, and other Improvements as are necessary or customarily incident to residential use. Unless a Lot (or Lots) has (or have) been specifically developed for attached single-family Living Units, all Lots will be used solely for detached single-family Living Units. Declarant may utilize one (1) Living Unit within the Subdivision for commercial purposes until the Lot and the Living Unit on it has been conveyed. After the conveyance occurs, the Living Unit will be used for residential purposes as outlined in this Section.

3.03. Rentals. Nothing in this Declaration will prevent the rental of any Lot and the Improvements on it by the Owner for residential purposes, including short-term rentals for a single night, or timesharing, fraction-sharing or similar programs.

3.04. Fences. All fences in the Subdivision are the exclusive property of the Association and are Common Areas. Each Owner accepting a conveyance to a Lot acknowledges that the boundary fences between the Lots do not follow the real estate boundary lines of the Lots, and each Owner accepts the conveyance of the Lot subject to an easement over the portion of the neighboring Lot

enclosed by the fence with such first Lot ("Enclosure Easement"). The purpose of the Enclosure Easement is for all uses not otherwise prohibited by law or this Declaration, including without limitation the right to exclude other Persons, except as expressly provided to the contrary in this Declaration. The Enclosure Easement exists in perpetuity; however, the Association may relocate the boundary fence and each Owner agrees to accept the new boundary line created by the relocated boundary fence as the new boundary line of the Enclosure Easement. If there is no fence between two Living Units, then the Enclosure Easement will extend to the midpoint between the outside walls of the Living Units, regardless of ownership of the underlying Lot.

3.05. Alteration or Removal of Improvements. Any construction, other than normal maintenance, that in any way alters the exterior appearance of any Improvement or the removal of any Improvement, will be performed only with the prior written approval of the Association.

3.06. Garbage Containers. The Association may specify the location on each Owner's Lot in which garbage containers must be placed for trash-collection service.

3.07. Drainage. There will be no interference with the established drainage patterns over any of the Property, except by Declarant, unless adequate provision is made for proper drainage and the Association approves the provision.

3.08. Construction Activities.

(a) This Declaration will not be construed so as to unreasonably interfere with or prevent normal construction activities during the construction of Improvements by an Owner (excluding Declarant) on any Lot within the Property. Specifically, no construction activities will be deemed to constitute a nuisance or a violation of this Declaration by reason of noise, dust, presence of vehicles or construction machinery, posting of signs, or similar activities, provided that the construction is pursued to completion with reasonable diligence and conforms to usual construction practices in the area. If construction on any Lot does not conform to usual practices in the area as determined by the Association in its sole good-faith judgment, the Association will have the authority to seek an injunction to stop the construction. In addition, if during the course of construction on any Lot there is excessive accumulation of debris of any kind that would make the Lot or any portion of it unsanitary, unsightly, offensive, or detrimental to it or any other portion of the Property, then the Association may contract for or cause such debris to be removed, and the Owner of the Lot will be liable for all expenses incurred in connection with removal.

(b) Notwithstanding anything in this Declaration to the contrary, the Declarant may take all actions desirable or necessary to complete the construction of Living Units on Lots owned by Declarant so long as the Declarant's construction activities do not deprive any Owner of all beneficial use of such Owner's Lot. Notwithstanding anything to the contrary herein, Declarant may use the one-hundred-foot (100') portion of the Private Drive parallel to Lots seven (7) through ten (10) of the Subdivision for the temporary staging of vehicles, material, and facilities from the commencement of any improvements until the completion of same. If Declarant no longer owns any Lot within the Subdivision, then this Paragraph 3.08(b) will terminate.

3.09. Landscaping. The Association will maintain all landscaping facing the Private Drive, forward from the line formed by the face of the Living Units and fences along the Private Drive.

Likewise, each Owner will maintain all landscaping in such Owner's Enclosure Easement in good order, which at a minimum means that the ground will be either grass or hardscape, no grass or weeds will exceed 6" in height, and the landscaping will not harbor pests (including mosquitoes). This Paragraph 3.09 will not apply to Declarant.

ARTICLE 4 COMMON AREAS

4.01. Common Areas. No land within any Common Areas will be improved, used, or occupied, except in the manner approved by Declarant, in its sole and absolute discretion. This required approval will extend to the nature and type of use, occupancy, and improvement. Declarant may, by written instrument, delegate its right to grant this approval to the Association. Access to any Common Areas may be limited to Persons currently paying Assessments, fees, and other charges, or otherwise conditioned or restricted, or made available to nonowners, all on the terms and conditions determined by Declarant in its sole and absolute discretion.

4.02. Maintenance. Declarant may, but will not be obligated to, in its sole discretion, maintain the Common Areas at its own cost and expense. If Declarant elects not to maintain the Common Areas, maintenance of any Common Areas will be the obligation of the Association, and Assessments may be levied on the Owners under Article 6. Under no circumstances will Declarant be liable to the Owners, the Association, or any other Person for maintaining or failing to maintain the Common Areas. The Association is responsible for the cost of maintaining, repairing, and replacing the following: (a) all fences in the Subdivision, (b) the access gate and entry security devices, if any; (c) the guest parking; (d) the Shared Drive; (e) such landscape irrigation as the Association may choose to install; (f) such trash and recycling facilities as the Association may choose to install, (g) the Association's landscaping described in Section 3.09, (h) the mail facilities; and, (i) each utility line between the utility street connection and the boundary of the Lot served by the utility. The cost of maintaining, repairing, and replacing any Improvement or other facility not expressly provided for in the immediately preceding sentence will be the expense of the Owner of the Lot on which such Improvement or other facility is located, including without limitation: (a) utility lines and connections exclusively serving the Living Unit; (b) landscape drainage facilities; (c) sewer; (d) the Owner's landscaping described in Section 3.09; and, (e) each utility line between the boundary of the Lot served by the utility and the Living Unit.

4.03. Condemnation. If all or any part of the Common Areas is taken or threatened to be taken by eminent domain or by power in the nature of eminent domain (whether permanent or temporary), Declarant, or the Association, if applicable, will be entitled to participate in the proceedings incident to the taking or threatened taking. The expense of participation in the proceedings by the Association will be a common expense to be paid out of Assessments. The Association is specifically authorized to obtain and to pay for such assistance from attorneys, appraisers, architects, engineers, expert witnesses, and other Persons as the Association, in its discretion, deems necessary or advisable to aid it in any matters relating to the proceedings. All damages or awards for any taking will be the property of Declarant, or, if applicable, deposited with the Association. The Association, if applicable, in addition to the general powers set forth in this Declaration, will have the sole authority to determine whether to contest or defend any proceedings, to make any settlement with respect to any proceedings, or to convey the property to the condemning authority in lieu of condemnation.

4.04. Security. Each Owner agrees that any security devices or services provided by or maintained by the Association, whether directly or indirectly, are provided subject to the following conditions:

(a) SECURITY IS THE SOLE RESPONSIBILITY OF LOCAL LAW ENFORCEMENT AGENCIES AND INDIVIDUAL OWNERS AND THEIR TENANTS, AND THEIR RESPECTIVE RELATED USERS. Any third-party security providers are independent contractors, the acts or omissions of which are not imputable to the Association or Declarant.

(b) Providing of any security device or service may never be construed as (i) an undertaking by the Association to provide personal security as to any Owner, tenant or their guests, or as to any other person, or (ii) a representation or undertaking that any security device or service will be continued, or (iii) a representation, guarantee or warranty that the presence of any Security Service will in any way increase personal safety or prevent personal injury or property damage due to negligence, criminal conduct or any other cause. WITHOUT LIMITATION OF THE FOREGOING, DECLARANT AND THE ASSOCIATION SHALL NOT HAVE ANY DUTY WHATSOEVER TO WARN, ADVISE OR INFORM ANY LAW ENFORCEMENT AGENCY, OWNER, TENANT OR THEIR GUESTS AS TO CRIMINAL CONDUCT OF ANY KIND OR AS TO ANY OTHER MATTERS REGARDING OR RELATING TO SECURITY DEVICES OR SERVICES, PAST OR PRESENT.

(c) Declarant, the Association and their guests are not liable for, and each Owner, their tenants, and their respective guests, must indemnify and hold Declarant and the Association harmless at all times from, any injury, loss or damages whatsoever, including without limitation any injury or damages caused by theft, burglary, trespass, assault, vandalism or any other crime, to any Person or property arising, directly or indirectly, from the providing or failure to provide any security device or service, or the discontinuation, modification, disruption, defect, malfunction, operation, repair, replacement or use of any security device or service.

ARTICLE 5 THE ASSOCIATION

5.01. Organization. The Association is a nonprofit corporation created for the purposes, charged with the duties, and vested with the powers prescribed by law or set forth in its Certificate of Formation and Bylaws or in this Declaration. Neither the Certificate of Formation nor Bylaws will for any reason be amended or otherwise changed or interpreted so as to be inconsistent with this Declaration. The Association will not be dissolved without the written consent of at least the affirmative vote of the ninety percent (90%) majority of the total number of votes of the Association, as determined under Section 5.03 of this Declaration.

5.02. Membership. Any Person who is or who becomes an Owner will automatically become a Member of the Association. The immediately preceding sentence does not include Persons that hold an interest in a Lot merely as security for the performance of an obligation or those having only an interest in the mineral estate associated with a Lot. Membership will be appurtenant to and will run with the ownership of the Lot that qualifies the Owner for membership, and membership may not be severed from, or in any way transferred, pledged, mortgaged, or alienated except together with the title to the Lot. Regardless of the number of persons who may own a Lot (such

as husband and wife or joint tenants, etc.), there is but one (1) membership for each Lot. Ownership of the Lots is the sole qualification for membership.

5.03. Voting Rights. There will be two classes of membership for the purpose of voting on any Association matter. The Class A Members will include each Owner (excluding Declarant) of a Lot within the Property, and each Owner will have one (1) vote for each Lot owned. The Class B Member will be Declarant, and Declarant will have ten (10) votes for each Lot it owns. The Class B Membership will convert to a Class A Membership when (a) Declarant has conveyed all Lots to owners or (b) Declarant voluntarily converts the Class B Membership to a Class A Membership by written instrument recorded in the real property records of Harris County, Texas, whichever occurs first.

5.04. Powers and Authority of the Association. The Association will have the powers of a Texas nonprofit corporation, subject only to the limitations expressly set forth in this Declaration. The Association will further have the power to do and perform any and all acts that may be necessary or proper for or incidental to the exercise of any of the express powers granted to it by the laws of Texas or by this Declaration; however, the Association will not, except to an insubstantial degree, engage in any activities or exercise any powers that are not in furtherance of the primary purposes of the Association. Without in any way limiting the generality of the two preceding sentences, the Association and the Board, acting on behalf of the Association, will have the following powers and authority:

- (a) To exercise all of the powers and privileges and to perform all of the duties and obligations of the Association as set forth in this Declaration and the Bylaws.
- (b) To fix, levy, collect, and enforce payment of any and all assessments, dues, fees, charges, interest, late fees, fines, costs of collection and foreclosure, attorney fees, trustee's fees, court costs, damages, and all other amounts due or owed to the Association, and to pay all expenses to accomplish the purposes for which these assessments, dues, fees, charges, and other amounts are levied or imposed, and to perform all of the duties and obligations of the Association as set forth in this Declaration and the Bylaws.
- (c) To acquire (by gift, purchase, or otherwise), own, hold, improve, build on, operate, maintain, convey, sell, lease, transfer, dedicate for public use, or otherwise to dispose of real or personal property in connection with the affairs of the Association.
- (d) To borrow money, to mortgage, to pledge, to deed in trust, or to hypothecate any or all of the Association's real or personal property as security for money borrowed or debts incurred.
- (e) To have and to exercise any and all powers, rights, and privileges that a corporation organized under Texas law may now or at a later time have or exercise.
- (f) To act in the capacity of principal, agent, joint venturer, partner, or otherwise.

5.05. Association Responsibilities – Common Areas. Subject to and in accordance with this Declaration, the Association, acting through the Board, will have the following duties:

(a) To accept, own, operate, and maintain all Common Areas that may be conveyed or leased to it by Declarant, and to accept, own, operate, and maintain all other property, real or personal, conveyed or leased to the Association by Declarant and to maintain in good repair and condition all lands, improvements, and other Association property owned by or leased to the Association, including without limitation the responsibilities set forth in Section 4.02, except as expressly provided otherwise in this Declaration.

(b) To pay all real property taxes, personal-property taxes, and other taxes and Assessments levied on or with respect to Common Areas or any other property owned by or leased to the Association to the extent that the taxes and Assessments are not levied directly on the Members of the Association. The Association will have all rights granted by law to contest the legality of the amount of the taxes and Assessments.

(c) To take out and maintain current a policy of liability-insurance coverage to cover accidental bodily injury or death caused by the use and enjoyment of the Common Areas. This insurance will be in an amount as the Board deems appropriate.

5.05 Document Retention Policy.

(a) The Association will maintain and preserve the Association's documents, books and records in accordance with this Section 5.05, which is the Association's document retention policy until changed by the Association. The Association may modify this document retention policy and record one or more new document retention policies, which, when recorded in the Official Public Records of Harris County, Texas, will supersede this Section 5.05.

(b) The Association will maintain certificates of formation, bylaws, restrictive covenants, and all amendments to the certificates of formation, bylaws, and covenants permanently. All financial books and records of the Association, minutes of meetings of the Owners and the Board, and the Association will retain all tax returns and audit records for seven (7) years. The Association will retain all account records of current Owners for five (5) years. The Association will retain all contracts with a term of one (1) year or more for four (4) years after the expiration of the contract term.

(c) The Association will make the Association's books and records, including financial records, open to and reasonably available for examination by an Owner, or a person designated in a writing signed by the Owner as the Owner's agent, attorney, or certified public accountant, in accordance with this Section 5.05. An Owner may obtain from the Association copies of information contained in the books and records of the Association by submitting a written request for access or information by certified U.S. mail, with sufficient detail describing the Association's books and records requested, to the mailing address of the Association or authorized representative as reflected on the most current management certificate filed on behalf of the Association. The request must contain an election either to inspect the books and records before: obtaining copies or to have the Association forward copies of the requested books and records and: (i) if an inspection is requested, the Association, on or before the tenth (10th) business day after the date the Association receives the request, will send written notice of dates during the Association's normal business hours that the Owner may inspect the requested books and records to the extent those books and records are in the possession, custody, or control of the Association; or (ii) if

copies of identified books and records are requested, the Association will, to the extent those books and records are in the Association's possession, custody, or control, produce the requested books and records for the requesting party on or before the tenth (10th) business day after the date the Association receives the request, except as otherwise provided herein or except as provided by law. If an inspection is requested or required, the inspection will take place at a mutually agreed time during the Association's normal business hours, and the requesting party may identify the books and records for the Association to copy and forward to the requesting party. The Association may produce books and records requested under this section in hard copy, electronic, or other format reasonably available to the Association, including making them available on an internet-based document server.

5.06 Document Production and Copying Policy.

(a) The Association will produce and copy documents, books and records of the Association in accordance with Section 5.05 and this Section 5.06, which is the Association's records production and copying policy until changed by the Association. The Association may modify this records production and copying policy and record one or more new records production and copying policies, which, when recorded in the Official Public Records of Harris County, Texas, will supersede this Section 5.06.

(b) With respect to any documents production or copy requests made to the Association, the Owner or requesting party will pay the Association all reasonable costs of materials, labor, and overhead resulting from the document production or copying request. Upon receipt of a request for document copying or production, the Association will provide the requestor with an estimate of the cost. If the estimated charges exceed \$200.00, then the Association may require the requesting party to pay the estimated charges in advance. Following receipt of the advance payment, and following the completion of the production or copying of documents, the Association will provide the requesting party with a statement for actual costs, and to the extent the actual costs are less than the estimated pre-paid charges, the Association will refund the excess not later than the thirtieth (30th) business day after the statement is delivered; or, if the actual costs exceed the estimate, the Owner or requesting party will pay the Association the excess within thirty (30) business days after the statement is delivered. Until modified by the Board, the document production and copying charges are set forth on "Exhibit A".

(c) All costs and fees of a document production or copying request by or on behalf of an Owner will be paid by the Owner, and to the extent not timely paid, will become a special Assessment against such Owner's Lot.

5.07 Board of Directors. The Board will be elected by the Owners in accordance with the Bylaws. On or before the one hundred twentieth (120th) day after the date that at least seventy-five percent (75%) of the Lots have been sold to parties other than Declarant (the "Control Transfer Date"), the Board will call a special meeting for electing Persons to the Board. At such election, at least one-third (1/3) of the Board of Directors will be elected by Owners other than Declarant.

ARTICLE 6
FUNDS AND ASSESSMENTS

6.01. Assessments.

(a) The Association may from time to time levy Assessments against each Lot that has been improved with a completed single-family residence. The level of Assessments will be equal and uniform between all improved Lots. No Assessments under this Declaration will be levied against any Lot unless a completed single-family residence has been constructed on the Lot. Notwithstanding anything to the contrary, the Declarant will not be charged Assessments of any nature whatsoever.

(b) When the obligation to pay an Assessment first arises after the commencement of the year or other period for which the Assessment was levied, the Assessment will be prorated as of the date when the obligation first arose in proportion to the amount of the Assessment year or other period remaining after that date.

(c) Each unpaid Assessment, together with the interest on it and the costs of collection, will be the personal obligation of the Owner of the Lot against which the Assessment fell due, and will become a vendor's lien against the Lot and all Improvements on it. The Association may enforce payment of Assessments in accordance with the provisions of this Article 6.

6.02. Maintenance and Reserve Funds. The Board will establish a maintenance fund and a self-sustaining reserve fund; all moneys paid to the Association will be deposited into these accounts, and disbursements will be made from them in performing the functions of the Association under this Declaration. The reserve fund will be maintained and used for the operation, repair, and maintenance of all Common Areas. The funds of the Association deposited into the maintenance and reserve funds must be used solely for purposes authorized by this Declaration, as it may from time to time be amended.

6.03. Regular Annual Assessments. Before the beginning of each fiscal year, the Board will estimate the expenses to be incurred by the Association during the year in performing its functions under the Restrictions, and a reasonable provision for contingencies and appropriate replacement reserves, less any expected income and any surplus from the prior year's fund. Assessments sufficient to pay the estimated net expenses will then be levied as provided in this Declaration, and the level of Assessments set by the Board will be final and binding if it is made in good faith. All regular Assessments will be due and payable to the Association at the beginning of the fiscal year or during the fiscal year in equal monthly installments on or before the first day of each month, or in any other manner as the Board may designate in its sole and absolute discretion. In no event will the maximum regular annual Assessments per Lot be increased by more than five percent (5%) per year, unless approved by at least two-thirds (2/3) of each class of Members who are voting in person or by proxy at a meeting duly called for that purpose, with the same quorum as required for special Assessments.

6.04. Special Assessments. In addition to the other assessments authorized herein, the Board may levy special Assessments at any time during each fiscal year for purposes of defraying, in whole or in part, any expenses not anticipated by the budget then in effect, or to replace part or all

of any contingency, capital or other reserve fund. SO LONG AS THE TOTAL AMOUNT OF SPECIAL ASSESSMENTS IN ANY ONE FISCAL YEAR ALLOCABLE TO EACH LOT DOES NOT EXCEED SIXTY PERCENT (60%) OF THE AMOUNT OF THE REGULAR ANNUAL ASSESSMENT THEN IN EFFECT, THE BOARD MAY IMPOSE THE SPECIAL ASSESSMENT WITHOUT VOTE OR APPROVAL OF ANY OWNER. Special Assessments allocable to each Lot exceeding the foregoing limitation will be effective only if approved by the affirmative majority vote of more than half of the total number of votes of the Association, as determined under the Declaration. Special Assessments are payable as determined by the Board, and the Board may permit special Assessments to be paid in installments extending beyond the fiscal year in which the special Assessment is imposed. However, nothing in this Section 6.04 will affect a charge against a Lot otherwise designated in this Declaration as a special Assessment.

6.05. Creation of Lien and Personal Obligation. To secure payment of the Assessments and any other charges incurred by an Owner under this Declaration, a vendor's lien is retained and reserved by Declarant in the deed from the Declarant to the purchaser of each Lot or portion thereof, whether or not it is expressed in such deed, and in consideration of the mutual covenants and benefits to be derived by Declarant and the Owners of Lots as in this Declaration set forth, the receipt and sufficiency of which is hereby acknowledged, Declarant hereby transfers, sets over, assigns and conveys to the Association, its successors and assigns, the vendor's lien herein retained and reserved against all Lots to the extent necessary to secure the Association in the payment of the Assessments and any other charges incurred by an Owner under this Declaration. Any Assessments and any other charges incurred by an Owner under this Declaration, together with interest, and any and all costs and reasonable attorney's fees which may be incurred by the Association in the collection of such Assessments and any other charges incurred by an Owner under this Declaration, will also be the personal obligation of the person who was the Owner of such Lot at the time when the charges fell due or the enforcement of the Restrictions was commenced. Except as provided in Section 6.09, each Owner's transferee, whether voluntary or by operation of law, is also jointly and severally liable for payment of all unpaid amounts due to the Association at the time of transfer, without prejudice to the rights of the transferee to recover from the transferor the amounts paid by said transferee.

6.06. Remedies for Non-Payment of Assessments and Other Charges.

(a) Any Assessments or other charges against a Lot not paid within thirty (30) days after the due date bears interest from the due date at (i) the rate of eighteen percent (18.0%) per annum or (ii) the maximum rate permitted by law. The Association may bring an action against the Owner personally obligated to pay the past-due amount or foreclose the lien against the Lot, regardless of whether or not the current Owner has personal liability for the payment of same, together with all interest, costs and reasonable attorney's fees incurred in any such action. Each Owner, by accepting a deed to a Lot, expressly vests in the Association, or its agents, the right and power to bring all actions against the Owner personally for such collection and to enforce the aforesaid lien by all methods available for the enforcement of such liens against real property, including foreclosure by judicial action brought in the name of the Association or (subject to Section 5.10 hereof) by non-judicial foreclosure pursuant to Section 51.002, Texas Property Code and such Owner hereby (i) expressly grants to the Association an extra-judicial power of sale in connection with the non-judicial foreclosure of said lien, and (ii) in addition, expressly grants and vests in the Association the right, power and authority to exercise such power of sale through a trustee (or

substitute or successor trustee, as may be the case from time to time) appointed in writing by the Association acting by and through its duly authorized President or Vice President. The Association may appoint, at any time by written instrument, a substitute trustee, and, if necessary, several substitute trustees in succession, who will succeed to all of the estate, rights, powers and duties of the trustee under the terms of this Declaration, and no notice of such appointment need be given to the Lot Owner or to any other person except the filing for record in the office of the County Clerk of Harris County, Texas.

(b) If the Association decides to non-judicially foreclose the lien provided herein pursuant to the provisions of said Section 51.002 of the Texas Property Code and to exercise the power of sale hereby granted, the Association will mail to the defaulting Owner a copy of the Notice of Trustee's Sale not less than twenty-one (21) days prior to the date on which the sale is scheduled by U.S. Postal Service, postage prepaid, certified, return receipt requested, properly addressed to the Owner's last known address according to the records of the Association. If required by law, the Association or Trustee will also record a copy of the Notice of Trustee's Sale with the Harris County Clerk. The Association, acting by and through a duly authorized officer or the Trustee and on behalf of the Lot Owners, may bid for the interest foreclosed at any foreclosure sale conducted pursuant to the terms hereof and to acquire and hold, lease, mortgage and convey such interest on behalf of the Lot Owners. Out of the proceeds of such sale, if any, first will be paid all expenses incurred by the Association in connection with such default, including reasonable attorneys' fees and a reasonable trustee's fee; second, from such proceeds will be paid to the Association an amount equal to the amounts in default, together with all charges related thereto; and, third, the remaining balance, if any, will be paid to the Owner. Following any such foreclosure, each occupant of any such Lot foreclosed on and each occupant of any Improvements thereon will be deemed to be a tenant at sufferance and may be removed from possession by any and all lawful means, including a judgment for possession in an action of forcible detainer and the issuance of a writ of possession thereunder. Further, each Owner, by acceptance of a deed to a Lot, hereby stipulates and agrees that the recitals contained in any Trustee's or Substitute Trustee's Deed or other instrument executed in due form by any trustee or substitute trustee, acting under the provisions of this Declaration, will be prima facie evidence of the facts recited therein, and that it will not be necessary to prove in any court, other than by such recitals, the existence of the facts essential to authorize the execution and delivery of such deed or deeds or other instrument in the passing of title thereby, and all prerequisites and requirements of any sale or sales will be conclusively presumed to have been performed, and all persons subsequently dealing with the interest purported to be conveyed by such deed or deeds or other instrument will be fully protected in relying upon the truthfulness of such recitals.

(c) It is the intent of this Section 6.06 to comply with the provisions of Section 51.002 of the Texas Property Code relating to non-judicial sales by power of sale and, in the event of the amendment of said law, this Section 6.06 will be deemed to be amended so as to comply with the amendments to said law. Hereafter, the President or any Vice President of the Association, acting without joinder of any other Owner or mortgagee or other person may, by amendment to this Declaration filed in the Real Property Records of Harris County, Texas, amend the provisions hereof so as to comply with amendments to Section 51.002 of the Texas Property Code.

6.07. Notice of Lien. In addition to the right of the Association to enforce the Assessments other charges, the Association may (but shall not be required to) file a claim of lien against the Lot

of the delinquent Owner by recording a notice ("Association Notice of Lien") setting forth (i) the amount of the claim of delinquency, (ii) the interest and costs of collection which have accrued

thereon, (iii) the legal description and street address of the Lot against which the lien is claimed and (iv) the name of the Owner thereof. Such Association Notice of Lien shall be signed and acknowledged by an officer of the Association or other duly authorized agent of the Association. The lien shall continue until the amounts secured thereby and all subsequently accruing amounts are fully paid or otherwise satisfied. When all amounts claimed under the Association Notice of Lien and all other costs and assessments which may have accrued subsequent to the filing of the Association Notice of Lien have been fully paid or satisfied, the Association shall execute and record a notice releasing the lien upon payment by the Owner of a reasonable fee as fixed by the Board of Directors to cover the preparation and recordation of such release of lien instrument.

6.08. Lien Subordinate to Mortgages. The liens described in Section 6.05 hereof and the superior title herein reserved in favor of the Association shall be deemed subordinate to a first lien or other liens of any bank, insurance company, savings and loan association, university, pension and profit sharing trusts or plans, or other bona fide, third party lender, including Declarant, and including an Owner that seller-finances the sale of its Lot, which may have heretofore or may hereafter lend money in good faith for the purchase or improvement of any Lot and any renewal, extension, rearrangement or refinancing thereof. Each such mortgagee of a mortgage encumbering a Lot who obtains title to such Lot pursuant to the remedies provided in the deed of trust or mortgage or by judicial foreclosure shall take title to the Lot free and clear of any claims for unpaid Maintenance Charges, or other charges and assessments against such Lot which accrued prior to the time such holder acquired title to such Lot. No such sale or transfer shall relieve such holder acquiring title to a Lot from liability for any Maintenance Charges, or other charges or assessments thereafter becoming due or from the lien thereof. Any other sale or transfer of a Lot shall not affect the Association's lien for Maintenance Charges or other charges and assessments levied hereunder. The Association shall make a good faith effort to give each such mortgagee sixty (60) days advance written notice of the proposed foreclosure of its respective liens in accordance with this Article 6, which notice shall be sent to the nearest office of such mortgagee by prepaid United States registered or certified mail, return receipt requested, and shall contain a statement of the delinquencies or other charges or assessments upon which the proposed action is based; provided, however, the failure to give such notice shall not impair or invalidate any foreclosure conducted by or on behalf of the Association pursuant to the provisions of this Article 6.

6.09. Statement of Assessments. Any transferee of a Lot (or prospective transferee of a Lot upon written request to the Association) shall be entitled to a statement from the Association setting forth all assessments due as of the date of the written request. The request must be in writing, must be addressed to the Association and must be delivered by registered or certified mail, return receipt requested, or by personal delivery with receipt acknowledged in writing. The Association may set a reasonable charge for providing a statement of indebtedness, the payment of which is a condition precedent to the Association's obligation to provide same. Except for fraud or misrepresentation, if the Association fails to respond to a proper written request for a statement of indebtedness within ten (10) business days after receipt of the request by the Association, and upon submission of a properly executed registered or certified mail return receipt or delivery receipt evidencing receipt of the request by the Association, upon transfer the transferee is not

liable for, nor shall the Lot transferred be subject to a lien for, any unpaid assessments against the Lot accruing prior to the date of the written request.

6.10. Pre-Foreclosure Notice Requirements. Notwithstanding anything to the contrary contained herein, the Association may not foreclose their lien by giving notice of sale under Section 51.002 of the Texas Property Code, or by commencing a judicial foreclosure action unless the Association has: (a) provided written notice of the total amount of the delinquency giving rise to the foreclosure to any other holder of a lien of record on the Lot whose lien is inferior or subordinate to the Association's lien and is evidenced by a deed of trust; and, (b) provided the recipient of the notice an opportunity to cure the delinquency before the sixty-first (61st) day after the date the Association mails the notice. Notice under this section must be sent by certified mail, return receipt requested, to the address for the lienholder shown in the deed records relating to the Lot that is subject to the Association's assessment lien.

6.11. Limitations on the Association's Right to Foreclose. The Association may not exercise the remedy of foreclosure of its assessment lien if the debt securing the lien consists solely of: (i) fines assessed by the Association; (ii) attorney's fees incurred by the Association solely associated with fines assessed by the Association; or (iii) amounts added to the Owner's account as an assessment for document production and copying. The Association may not foreclose on its Assessment lien unless the Association first obtains a court order in an application for expedited foreclosure under the rules adopted by the Supreme Court for use by a property owners' association in foreclosing an Assessment lien. The Association may use the procedure described herein to foreclose any lien created under this Declaration or under applicable law. Expedited foreclosure is not required under this Section if the Owner of the Lot that is subject to foreclosure agrees in writing at the time the foreclosure is sought to waive expedited foreclosure under Texas Property Code Section 209.0092.

ARTICLE 7 EASEMENTS

7.01. Reserved Easements. All dedications, limitations, restrictions, and reservations shown on the Plat and all grants and dedications of easements, rights-of-way, restrictions, and related rights made before the Property became subject to this Declaration are incorporated by reference and made a part of this Declaration for all purposes as if fully set forth in this Declaration and will be construed as being adopted in each and every contract, deed, or conveyance executed or to be executed by or on behalf of Declarant conveying any part of the Property. Declarant reserves the right to make changes in and additions to the easements for the purpose of most efficiently and economically developing the Property. Further, Declarant reserves the right, without the necessity of the joinder of any Owner or other Person, to grant, dedicate, reserve, or otherwise create, at any time or from time to time, easements for public-utility purposes (including but not limited to gas, water, electricity, telephone, and drainage) in favor of any Person in the Common Areas.

7.02. Drainage and Utility Easements and Devices.

(a) Perpetual, non-exclusive easements, including all necessary rights of ingress, egress and regress thereto and therefrom, are hereby established upon, over and across the Subdivision for the following purposes:

(i) "Utility Easements": excavating, constructing, installing, maintaining, inspecting, repairing, replacing or removing any utilities, including but not limited to, water, sewer, gas electric, cable television, telecommunications and other utilities (the "Utility Easements").

(ii) "Drainage Easements": excavating, constructing, installing, maintaining, inspecting, repairing, replacing or removing any drainage swales, lines, drains and such other things and devices ("Drainage Devices"), including providing for, permitting and allowing sheet flow of water from and among the lots and common areas, from one lot to another lot, and otherwise throughout the Subdivision to the fullest extent deemed necessary or appropriate by Declarant or the Association for any drainage purposes.

(b) The easements and restrictions described in Paragraph 7.02(a) apply to all the Property contained within the Subdivision, including each Lot, and including under (but not upon, across or above) the Shared Driveway, SAVE, EXCEPT AND EXCLUDING all areas under the footprint of each Living Unit, as presently or as hereafter constructed.

(c) Once established and for so long as continued maintenance thereof is reasonably necessary, all Utility Easements, all Drainage Easements and all Drainage Devices must remain unaltered and unobstructed to the extent reasonably necessary for the purposes thereof. Each Drainage Device and all private utilities must be properly maintained by each Owner of each Lot to which the same pertains, by the Association in the Common Areas, or by a quasi-public or private utility company, and not by any city, county or other governmental entity except as to any such entity which expressly agrees to or is otherwise required by law to, and which in fact does, provide any such maintenance.

(d) THIS SECTION 7.02 WILL NOT BE CONSTRUED TO OBLIGATE DECLARANT TO INSTALL, CONSTRUCT, MAINTAIN, INSPECT, REPAIR, REPLACE OR REMOVE ANY SPECIFIC UTILITIES OR ANY DRAINAGE DEVICES OF ANY TYPE OR KIND WHATSOEVER, AND ANY REPRESENTATION, WARRANTY OR IMPLICATION AS TO THE SAME IS HEREBY SPECIFICALLY DISCLAIMED.

(e) THE OWNER OF EACH LOT SHALL INDEMNIFY AND HOLD HARMLESS DECLARANT, AND PUBLIC UTILITY COMPANIES HAVING FACILITIES LOCATED OVER, ACROSS OR UNDER UTILITY EASEMENTS FROM ANY LOSS, EXPENSE, SUIT OR DEMAND RESULTING FROM INJURIES TO PERSONS OR DAMAGE TO PROPERTY IN ANY WAY OCCURRING, INCIDENT TO, ARISING OUT OF, OR IN CONNECTION WITH SAID OWNER'S INSTALLATION, MAINTENANCE, REPAIR OR REMOVAL OF ANY IMPROVEMENTS OR PERSONAL PROPERTY LOCATED WITHIN OR OVER UTILITY EASEMENTS, INCLUDING WHERE SUCH INJURY OR DAMAGE IS CAUSED OR ALLEGED TO BE CAUSED BY THE SOLE NEGLIGENCE OF SUCH PUBLIC UTILITY OR ITS EMPLOYEES, OFFICERS, CONTRACTORS, OR AGENTS.

7.03. Maintenance Access Easement.

(a) The Maintenance Access Easement set forth in Section 7.03(b) applies to any property, including any Lot or Common Area, upon which any new building or addition to an existing building, including any Living Unit, is or will be constructed within three feet of adjacent property.

The property upon which a new building or addition to an existing building is to be constructed is herein referred to as the "Accessing Property". The adjacent property to be accessed pursuant to the Maintenance Access Easement includes any Lot or Common Area, or any part thereof, which is adjacent to the Accessing Property and the aforesaid building or addition thereon, all of which is herein referred to as the "Access Easement Property". The area of land on the Access Easement Property to which the Maintenance Access Easement applies is herein referred to as the "Access Area".

(b) A perpetual, non-exclusive easement, including all necessary rights of ingress, egress and regress thereto and therefrom, is hereby established upon, over, and across each Lot (the "Maintenance Access Easement") for use and benefit of the owner of the Accessing Property, and their agents, contractors or employees, for the purposes of inspection, construction, maintenance, repair or replacement of any building, including any Living Unit, or any addition to a building

(c) The Access Area consists of a strip of land on the Access Easement Property abutting and extending along the entire common boundary line of the Accessing Property and the Access Easement Property which is adjacent to the building or addition thereto on the Accessing Property, extending from the said common boundary line, inward on the Access Easement Property for a distance of six feet, as may be reasonably required, and subject to Paragraph 7.03(c).

(d) NOTWITHSTANDING ANYTHING TO THE CONTRARY IN THIS SECTION 7.03, EACH MAINTENANCE ACCESS EASEMENT IS SUBJECT TO THE FOLLOWING EXCLUSIONS AND LIMITATIONS:

(i) THE MAINTENANCE ACCESS EASEMENT DOES NOT EXTEND TO, AND THE ACCESS AREA DOES NOT INCLUDE, ANY AREAS UNDER THE FOOTPRINT OF OR TO ANY OTHER PART OF ANY LIVING UNIT OR OTHER BUILDING LOCATED ON THE ACCESS EASEMENT PROPERTY, OR TO ANY ADDITION THERETO, AS PRESENTLY OR AS HEREAFTER CONSTRUCTED UPON THE ACCESS EASEMENT PROPERTY.

(ii) THE ACCESS AREA MAY BE UTILIZED ONLY WHEN AND TO THE EXTENT THAT THE APPLICABLE INSPECTION, CONSTRUCTION, MAINTENANCE, REPAIR OR REPLACEMENT CANNOT BE REASONABLY CONDUCTED WITHIN THE BOUNDARIES OF THE ACCESSING PROPERTY.

(e) The Access Area must remain unobstructed, and except for the fences owned by the Association, no Improvements of any kind are permitted to be placed, constructed or maintained upon or within the Access Area except for a lawn and other usual and customary landscaping which will not unreasonably interfere with the Maintenance Access Easement. The Access Area may be increased upon written request and by written approval as may be provided in the applicable covenants, conditions, restrictions, easements, rules and regulations as may hereafter be adopted by the Association, and all Maintenance Access Easements are subject to such notice, duration, usage, restoration and other requirements and conditions as may be provided in such written approval.

7.04 Shared Driveway. Those portions of the Plat as "Abbadean Drive" are hereby dedicated as perpetual, non-exclusive, reciprocal and mutual, private ingress, egress, access easements for pedestrian and vehicular access to, from and between the various Lots, the Common Area, and the adjacent public streets. Each Lot and the Common Area shall be the beneficiary of the same. The easements across the Shared Driveway shall be used for the purposes of construction and maintenance by Declarant and/or the Association of a common driveway upon the Shared Driveway. The Shared Driveway is not dedicated to the public, and shall be operated as a private driveway by the Association, with each Owner, Declarant and the Association having an easement for the use and benefit of the Shared Driveway, which easement shall include rights of ingress, egress, and passage over and along said Shared Driveway in favor of the Declarant, the Association, the Owners and their respective legal representatives, successors and assigns, guests, invitees, licensees, designees, and the successors-in-title to each Lot Owner and in favor of the invitees and designees of each successor-in-title to each Lot Owner, but not in favor of the public. Further, except as expressly provided in Section 3.08, no Person may use the Shared Driveway for parking any vehicle.

7.05 Access Gates; Maintenance. The entry gate, if any, or other entry security device(s), if any, within the Property, together with the Shared Driveway, are "private" and are part of the Common Areas subject to the jurisdiction of, administration by, and maintenance and repair by the Association. Declarant, the Association, and each Owner is hereby granted a perpetual access easement to use such entry gate or other entry security device(s) for ingress into and egress from the Property. The Association is responsible for the maintenance and upkeep of the entry gate, if any, the other entry security device(s), if any, and the Shared Driveway.

7.06. Surface Areas. The surface of easement areas may be used for planting of shrubbery, trees, lawns, or flowers. However, neither the Declarant nor any supplier of any utility service using any easement area will be liable to any Owner or to the Association for any damage done by them or either of them, or their respective agents, employees, servants, or assigns, to any of this vegetation as a result of any activity relating to the construction, maintenance, operation, or repair of any facility in any of these easement areas.

7.07. Common Areas. Each Owner will have a nonexclusive easement for use and enjoyment in and to all Common Areas, which will be appurtenant to and will pass with title to each Owner's Lot, subject to the following rights:

(a) The right of the Association, after notice and hearing if required by law, to suspend the Owner's right to use the Common Areas for any period during which an Assessment against the Owner's Lot remains unpaid, and for any period during which the Owner is in violation of the rules and regulations of the Association.

(b) The right of Declarant or the Association, as applicable, to dedicate or transfer all or any part of the Common Areas to any public agency, authority, or utility for any purposes and subject to any conditions as may be deemed reasonable by Declarant, in its sole discretion, or, in the case of the Association, approved by a two-thirds (2/3) vote of each class of Members who are voting in person or by proxy at a meeting duly called for this purpose, with the same quorum as required for special Assessments.

(c) The right of the Association to borrow money for the purpose of improving the Common Areas and, in furtherance of this purpose, to mortgage the Common Areas, all in accordance with the Certificate of Formation and Bylaws.

(d) The right of Declarant or the Association, as applicable, to promulgate reasonable rules and regulations regarding use of the Common Areas.

(e) The right of Declarant or the Association, as applicable, to contract for services with third parties on any terms as Declarant or the Association may determine.

7.08. Self-Help Easement. Each Owner grants to the Association an easement on, over, and across its Lot for purposes of curing any violation of the restrictions, covenants, and obligations set forth in this Declaration.

ARTICLE 8 MISCELLANEOUS

8.01. Term. This Declaration, including all of its covenants, conditions, and restrictions, will be effective on the date this Declaration is recorded in the real property records of Harris County, Texas, and will continue in effect for a period of forty (40) years, after which it will be automatically extended for successive periods of ten (10) years each, unless amended or extinguished as set forth in Section 8.02.

8.02. Amendment; Extinguishment. This Declaration may be amended or extinguished only in accordance with the provisions of this Section. All provisions of this Declaration may be amended or extinguished by the recording in the real property records of Harris County, Texas, of an instrument executed and acknowledged by the President and Secretary of the Association, setting forth the amendment or extinguishment and certifying that the amendment or extinguishment has been approved by Owners entitled to cast at least sixty-seven percent (67%) of the number of votes entitled to be cast under Section 6.03. Notwithstanding the immediately preceding sentence, until the Control Transfer Date, any such amendment shall require the written approval of the Declarant in order to become effective. The Declarant shall have and reserves the right at any time and from time to time prior to the Control Transfer Date, without the joinder or consent of any Owner or other party, to amend this Declaration by an instrument in writing duly signed, acknowledged, and filed for record for the purpose of correcting any typographical or grammatical error, oversight, ambiguity or inconsistency appearing herein, provided that any such amendment shall be consistent with and in furtherance of the general plan and scheme of development as evidenced by this Declaration and shall not impair or adversely affect the vested property or other rights of any Owner or his mortgagee.

8.03. Notices. Any notice permitted or required to be given by this Declaration must be in writing. Unless otherwise required by law, the notice must be delivered to the Person to whom the notice is directed (1) in person, with written receipt received, (2) by U.S. mail, registered or certified, (3) by a nationally recognized overnight delivery service, (4) by e-mail, or (5) by any other method required or permitted under the Declaration, Certificate of Formation, or Bylaws. If delivery is by U.S. mail, the notice will be deemed to have been given when deposited, properly addressed and with proper postage, with the U.S. Postal Service. If delivery is by e-mail, the notice

will be deemed to have been given when the message is transmitted to the proper e-mail address. The address or e-mail address at which a Person is given notice may be changed from time to time by notice in writing given by the Person to the Association.

8.04. Governing Law. The provisions of this Declaration will be liberally construed to effectuate the purposes of creating a uniform plan for the development and operation of the Property and of promoting and effectuating the fundamental concepts of the Property set forth in this Declaration. This Declaration will be governed by and interpreted under the laws of the State of Texas.

8.05. Exemption of Declarant. Despite any provision in this Declaration to the contrary, neither Declarant nor any of Declarant's activities will in any way be subject to the control of or under the jurisdiction of an architectural committee, including but not limited to an architectural review authority described in Section 209 of the Texas Property Code. Without in any way limiting the generality of the immediately preceding sentence, this Declaration will not prevent or limit the right of Declarant to excavate and grade, to construct and alter drainage patterns and facilities, to construct any and all other types of improvements, sales and leasing offices, and similar facilities, and to post signs incidental to construction, sales, and leasing anywhere within the Property.

8.06. Nonliability of Architectural Committee and Board Members. The Board and its members will not be liable to the Association or to any Owner or to any other Person for any loss, damage, or injury arising from their being in any way connected with the performance of the Board's duties under this Declaration unless due to the willful misconduct or bad faith of the Board or its members, as the case may be.

8.07. Assignment of Declarant. Despite any provision in this Declaration to the contrary, Declarant may assign, in whole or in part, any of its privileges, exemptions, rights, and duties under this Declaration to any other Person and may permit the participation, in whole or in part, by any other Person in any of these privileges, exemptions, rights, and duties. Any assignment of the rights of Declarant must be expressly set forth in writing and the mere conveyance of a portion of the Property without written assignment of the rights of Declarant will not be sufficient to constitute an assignment of the rights of Declarant under this Declaration.

8.08. Enforcement; Nonwaiver.

(a) Except as otherwise provided in this Declaration, any Owner at its own expense, Declarant, the Association, and the Board will have the right to enforce any and all provisions of the Restrictions. This right of enforcement will include both damages for, and injunctive relief against, the breach of any provision. The failure to enforce any provision at any time will not constitute a waiver of the right to enforce the provision or any other provision in the future. Also, the violation of any of the Restrictions by an Owner or the Owner's family, guests, tenants, lessees, or licensees will authorize the Board, acting on behalf of the Association, to avail itself of any one or more of the following remedies in addition to any other available remedies:

(i) The imposition of a special charge not to exceed Twenty-Five Dollars (\$25.00) per violation.

(ii) The suspension of the Owner's rights to use any Common Areas or other Association property so long as a violation exists.

(iii) The right to cure or abate the violation and to charge any related expenses to the Owner.

(iv) The right to seek injunctive and any other relief provided or allowed by law against the violation and to recover from the Owner all of the Association's related expenses and costs, including but not limited to attorney fees and court costs.

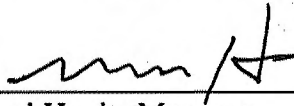
(b) Before the Board may invoke the remedies provided in Section 8.08(a), it must give notice of the alleged violation to the Owner in the manner specified in Section 8.03 and must give the Owner an opportunity to request a hearing. If, after the hearing, or if no hearing is requested, after the deadline for requesting a hearing has passed, the Board determines that a violation exists, the Board's right to proceed with the listed remedies will become absolute. Each day a violation continues will be deemed a separate violation. All unpaid special charges imposed under this Section for violation of the Restrictions will be the personal obligation of the Owner of the Lot for which the special charge was imposed and will become a lien against the Lot and all Improvements on it. The liens will be prior to any declaration of homestead and the Association may enforce payment of the special charges in the same manner as provided in Article 6. Despite any provision in this Section to the contrary, the Association will not be required to afford an Owner a hearing before the filing of a lawsuit to collect past-due Assessments or foreclose under the Association's lien arising therefrom.

10.09. Construction. The provisions of this Declaration will be deemed independent and severable, and the invalidity or partial invalidity of any provision or portion of a provision will not affect the validity or enforceability of any other provision or portion of a provision. Unless the context requires a contrary construction, the singular includes the plural and the plural the singular, and the masculine, feminine, or neuter each includes the masculine, feminine, and neuter. All headings and titles used in this Declaration are intended solely for convenience of reference and will not enlarge, limit, or otherwise affect that which is set forth in any of the paragraphs, sections, or articles in this Declaration.

EXECUTED as of the date signed below, and effective upon its recording in the Real Property Records of the County Clerk of Harris County, Texas (the "Effective Date").

SIGNATURE PAGE FOLLOWS

604 Martin LLC,
a Texas limited liability company

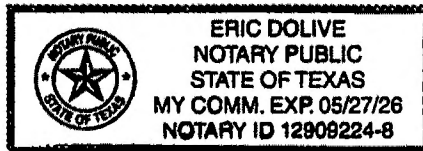
By: 
Michael Ho, its Manager

STATE OF TEXAS

COUNTY OF HARRIS

§
§
§

This instrument was acknowledged before me on August 25, 2022 by Michael Ho,
Manager of 604 Martin LLC, a Texas limited liability company, on its behalf.




Notary Public, State of Texas

EXHIBIT A

Copy Charges. Whether printed from a computer or copy machine:

- (a) Standard paper: \$0.10 per page or part of a page, legal or letter size.
- (b) Other paper: \$0.50 per page or part of a page, exceeding 11" x 14".
- (c) Digital: \$1.00 per CD or DVD disc or \$5.00 per thumb drive, regardless of page count.

Document Production Charges.

- (a) \$20 per hour for labor locating, compiling, manipulating, and producing data, including without limitation the actual time to locate, compile, manipulate data, and reproduce the requested information; however, this charge does not apply to a single request for fifty (50) or fewer pages of paper records.
- (b) If the Association already has the requested information in electronic format and can either post such information on an internet-based document server maintained by the Association for access by the requestor or transmit the documents to the requestor by electronic mail, then provided the labor charge does not exceed thirty (30) minutes, there will be no charge for the request.

Other Charges. The Association may charge the actual cost of the following items as part of a response to a copy request or production request:

- (a) Miscellaneous supplies, such as labels, boxes, folders, envelopes, and other supplies.
- (b) Postal or shipping expenses necessary to transmit the information to the requesting party.

RP-2022-438456
Pages 26
08/29/2022 02:30 PM
e-Filed & e-Recorded in the
Official Public Records of
HARRIS COUNTY
TENESHIA HUDSPETH
COUNTY CLERK
Fees \$114.00

RECORDERS MEMORANDUM

This instrument was received and recorded electronically and any blackouts, additions or changes were present at the time the instrument was filed and recorded.

Any provision herein which restricts the sale, rental, or use of the described real property because of color or race is invalid and unenforceable under federal law.
THE STATE OF TEXAS
COUNTY OF HARRIS

I hereby certify that this instrument was FILED in File Number Sequence on the date and at the time stamped hereon by me; and was duly RECORDED in the Official Public Records of Real Property of Harris County, Texas.




COUNTY CLERK
HARRIS COUNTY, TEXAS

RP-2022-438456